

Carrelha v. MEB Loan Trust VIII

Integrated case memorandum — what is verified, alleged, contradicted, inferred and unverified; which arguments are strongest, which are dangerous, which defects are curable, and what happens next.

21	7	21	14
VERIFIED FINDINGS	CONTRADICTED ITEMS	EVIDENCE GAPS	BLOCKING DECISIONS

COURT

N.D. Ga., Gainesville Division

SPECIALISTS

8 assignments · 8 results · 9 skills

PREPARED

21 September 2026

CASE NO.

2:26-cv-00110-RWS-AWH

REGISTERS

26 populated · 516 cross-refs resolving

SOURCE INTEGRITY

SHA-256 verified — no original altered

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Carrelha v. MEB Loan Trust VIII — Integrated Case Memorandum

MATTER	CARRELHA-2026 · N.D. GA., GAINESVILLE DIV. · 2:26-CV-00110-RWS-AWH (STORY, J.; HOWARD, M.J.)
Specialists consolidated	8 assignments, 8 results, 9 skills available
Sources	19 registered; 7 read in full, 3 in part, 9 derived extracts
Registers	20 populated; 299 identifiers, 516 cross-references, all resolving
Posture as of	2026-07-31 (newest court source). Today: 2026-09-21
Source integrity	SHA-256 verified before and after — no original altered

0. Bottom line

****One theory in this matter is strong, documented, and survives adversarial review from all five seats:**** Shellpoint is a debt collector by its own written admission; it boarded the loan after its own reckoning of default; it received \$1,899.56 on 2025-05-17 that it **never reversed and never applied**, still showing as the ending unapplied balance ten months later; and it charged **\$8,408.74** in default and foreclosure fees against a principal that has not moved since December 2023. Every element of that comes from the defendants' own records.

Three things are urgent and cheap. Four corrections to the pleading take under an hour, require no new fact, and remove the three cheapest points the defense has — one of them currently costs us our best allegation. Phase 0 self-help (the client's bank records, two recorded instruments, the published notices, the client's own NOE file) needs no discovery and closes five blocking gaps, including the one on which Counts I–III currently fail.

One thing has not changed since Phase 1 and still governs everything: nobody here can establish what was filed, or whether it was filed by the 2026-08-21 deadline. That deadline passed 31 days ago under an order cautioning dismissal.

A material Phase 1 correction: Phase 1 analysed the wrong pleading. A later, materially better 16-count version exists and supersedes that analysis. Phase 1 had flagged exactly this risk as HD-2; the risk materialised.

1. What is verified

Facts a court could find on this record, or has already found.

From the defendants' own records

#	FINDING	LABEL	SOURCE
V-1	Principal frozen at \$140,288.02 since 2023-12-21, unmoved through the 2026-03-10 print	[VERIFIED]	SRC-013
V-2	\$8,408.74 in 27 default/foreclosure charges, 2024-05-06 to 2026-02-27, against that frozen principal	[VERIFIED]	SRC-013 (DISP-006)
V-3	Four 2025 tenders of \$1,899.56 = \$7,598.24. Three reversed with NSF entries each recorded at \$0.00. The 2025-05-17 tender was never reversed and equals the ledger's own ending unapplied balance	[VERIFIED]	SRC-013 (DISP-003)
V-4	\$0.00 of the \$7,598.24 was ever applied to principal or interest	[VERIFIED]	SRC-013
V-5	\$10,000 principal curtailment 2023-09-15, reversed 2023-09-26; net effect on principal \$0.00 ; no reason stated	[VERIFIED]	SRC-013 (DISP-004)
V-6	\$855.00 into suspense 2023-09-26, out 2023-10-11, no application shown. Both rows marked PriorServicer	[VERIFIED]	SRC-013 (DISP-005)
V-7	\$19,588.88 reinstatement credit 2023-09-13, distributed 2023-09-14 across due dates 02/2023–10/2023; \$70.00 residual	[VERIFIED]	SRC-013 (DISP-002)
V-8	Late-charge balance of \$1,145.62 on the 2022-08-05 origination row , carried with no assessing entry	[VERIFIED]	SRC-013 (TXN-002)
V-9	Shellpoint boarded the loan 2024-07-07; every row after bears a frozen due date of 01/01/24	[VERIFIED]	SRC-013 (TXN-034)
V-10	Shellpoint's own letter: " Newrez LLC dba Shellpoint Mortgage Servicing is a debt collector. "	[VERIFIED]	SRC-012
V-11	The designated error-resolution address is " SLS Default - SMS P.O. Box 10826 Greenville, SC 29603-0826 "	[VERIFIED]	SRC-012

From the court

#	FINDING	LABEL	SOURCE
V-12	Remand denied; prior-exclusive-jurisdiction argument "lacks merit"; unanimity defect is procedural not jurisdictional	[COURT - FOUND]	Doc. 34 at 20, 23

V-13	PI denied as moot , not on the merits	[COURT - FOUND]	Doc. 34 at 25
V-14	**Defendants must give Plaintiffs <i>and the Court</i> at least 60 days' advance notice before proceeding with foreclosure**	[COURT - FOUND]	Doc. 34 at 26
V-15	Original complaint held a type-one shotgun pleading; amended complaint directed by 2026-08-21 ; dismissal cautioned	[COURT - FOUND]	Doc. 35 at 7–9
V-16	Docs. 4 and 5 denied as moot with leave to seek dismissal if Plaintiffs fail to amend	[COURT - FOUND]	Doc. 35 at 9
V-17	Lendage "was not, and is not, a named defendant"	[COURT - FOUND]	Doc. 34 at 21
V-18	Judge Bagley: "many of the Plaintiffs' claims are contingent upon whether HELOC loan proceeds were actually delivered by the lender"	[COURT - FOUND]	Doc. 34 at 7

From verified authority

#	FINDING	LABEL
V-19	Realleging a block of factual paragraphs without incorporating preceding counts is not a type-one shotgun pleading — <i>Weiland</i> , 792 F.3d at 1324: "looks, at first glance, like the most common type of shotgun pleading. But it is not. "	[LEGAL - CONCLUSION]
V-20	<i>Vibe Micro</i> 's one-chance-then-prejudice rule is stated for counselled litigants; n.6 expressly reserves the pro se question	[LEGAL - CONCLUSION]
V-21	State-law claims dismissed on non-merits Rule 8 grounds should be dismissed without prejudice as to refiling in state court — <i>Vibe Micro</i> , 878 F.3d at 1308–09	[LEGAL - CONCLUSION]

2. What is alleged

#	ALLEGATION	BY	CORROBORATION IN THE REVIEWED RECORD
A-1	Ten QWR/NOE/RFI inquiries; at least thirteen boilerplate acknowledgments	Plaintiffs, ¶¶ 33–36	None. Zero in the manifest. The only documented channel is the CFPB portal, which V-11 shows is not the designated address
A-2	Only \$51,409.50 of the \$149,650.00 reached Plaintiffs	Plaintiffs, ¶ 18	None. Pleaded on personal knowledge plus a screenshot (Ex. 7) not in the manifest
A-3	The four 2025 payments were TPP payments and none was returned by the bank	Plaintiffs, ¶ 29	Ledger corroborates the tenders; the bank records are not in the manifest
A-4	Mercer Advisors offer of \$600,000–\$800,000, rescinded because of the reporting	Plaintiffs	None
A-5	FCRA: \$0 balance with \$25,495 past due (11/2024); \$173,839 on a \$149,650 limit (10/2025)	Plaintiffs	No credit report, tradeline or ACDV record in the manifest
A-6	MEB is the current owner of the loan	Shellpoint, Witt Letter	Contradicted by the registry — see C-1
A-7	The account is due for the 01/01/2024 payment	Shellpoint, SRC-012	Consistent with the ledger's frozen due date, but it is the defendant's assertion

3. What is contradicted

The distinction that matters most in this memorandum. These are not unproven — the record affirmatively runs the other way.

#	ALLEGATION	CONTRADICTED BY	EFFECT
C-1	MEB Loan Trust VIII owns the loan (Shellpoint's own letter)	The MERS ServicerID investor field, retrieved 2026-03-24, names FREED Mortgage Trust 2022-HE1 ; and the recorded assignment recites MEB as "a[n] CORPORATION organized under the laws of NEW YORK " while the letter gives a Delaware trust address	The defendants' own records disagree about who owns this loan. A records-reliability finding available with no standing problem — <i>not</i> a title defect (CON-008)
C-2	"Each of those payments was... reversed" (§ 29)	Plaintiffs' own Exhibit 15 : the 2025-05-17 tender was never reversed	The pleading understates its own best evidence . Curable in ten minutes (PD-08 / CA-02)
C-3	Shellpoint rejected the \$855 payment (§ 31)	The ledger marks both rows PriorServicer , ten months before Shellpoint's boarding — which § 27 itself pleads	Wrong defendant , provable from our own exhibit (PD-07 / CA-06)
C-4	§ 3 cites "Count X" and "Count XI"	The headings place them at Counts IX and X	Self-inconsistent cross-reference in a pleading filed under an order to replead carefully (PD-13 / CA-07)
C-5	A \$5,200.00 payment was made and never credited (SRC-001)	No \$5,200.00 entry exists anywhere in the 72-row ledger. The 12/21/23 cluster totals \$4,355.87 , \$5,085.00 , or \$4,980.88 depending on which entries are counted — none is \$5,200.00	The later pleading drops the allegation entirely , which is the right call on this record (DISP-001)
C-6	Executed loan modification breached (SRC-001)	Doc. 34 at 3 n.4: loss-mitigation efforts "have been unsuccessful"	Also dropped in the later pleading
C-7	SRC-007's "RED FLAG: NEGATIVE principal payment" on the 2022-08-05 row	That row is the opening-balance booking	Advancing it would be refuted in one sentence (CA-09)

4. What can reasonably be inferred

#	INFERENCE	PREMISES	STRENGTH	WHAT BREAKS IT
I-1	The 16-count pleading cures the Doc. 35 defect	Doc. 35 placed the original in type one for incorporating preceding counts; this pleading incorporates only identified factual paragraphs; <i>Weiland</i> at 1324 approves that structure	Strong	A different version having been filed; or a <i>different</i> Weiland category applying
I-2	The 11/16/22 (-\$2,900) and 02/09/23 (-\$1,700) entries are HELOC draws	Revolving line; draws increase principal; no matching credit anywhere in 42 months; the 09/26/23 negative <i>does</i> have a pair and is plainly a reversal	Moderate	The transaction-code key showing a separate draw code
I-3	The \$1,145.62 origination-row late charge is a data-conversion artefact	No assessing entry precedes it; it is carried, not assessed; conversions routinely carry balances	Moderate	Prior-servicer records showing an actual assessment
I-4	There were two distinct foreclosure processes	Doc. 34 describes SLS initiating in early 2024; SRC-012 describes a 2026-01-05 referral; the ledger shows two distinct clusters of foreclosure charges and McCalla paid from 08/2024 despite a recited July 2025 retention	Moderate	The 2024 foreclosure file showing one continuous process
I-5	The balance of the loan proceeds went to third-party creditor payoffs	This is a debt-consolidation HELOC; SRC-023 describes the product as paying creditors directly; ¶ 18 calls the \$51,409.50 a cash-out consistent with a \$50,000 cap	Moderate — and it cuts against us	The disbursement schedule showing otherwise. This is the defense answer to Count IX

5. What remains unverified

ID	QUESTION	WHY IT MATTERS	RESOLVES WITH	OWNER
U-1	Was an amended complaint filed by 2026-08-21?	Whether the case is alive	PACER	Human — today
U-2	Which document was filed — SRC-001, SRC-020, or neither?	Sections 1, 3 and 6 describe SRC-020	PACER	Human — today
U-3	Did the 2025 tenders clear without return?	Decisive for the strongest theory	Client's bank	Human
U-4	Where did the balance of the loan proceeds go?	Count IX turns on it; Judge Bagley said many claims do	Closing file	Human
U-5	Do the ten NOE/RFI inquiries exist?	Counts I–III fail without them	Client's file	Human
U-6	Is the Mercer Advisors loss documented?	Largest damages figure	Client; subpoena	Human
U-7	What does <i>Ames</i> hold on borrower standing?	Governs the worth of every ownership finding	Research	Research
U-8	Does § 1692k(d) carry a one-year period?	Whether the FDCPA count is facially barred in part	Research	Research
U-9	Are the element formulations correct?	Every row of the claim-survival matrix depends on them	Research	Research
U-10	Is the discovery gate open?	Nothing may be served	PACER; local rules	Human
U-11	Is Section J executed?	Whether the pleading is signed	Read the document	Human

6. What additional evidence is needed

21 gaps registered. Ranked by what they unblock:

GAP	ITEM	ROUTE	BLOCKING
GAP-011	Full federal docket after Doc. 35	PACER	Yes
GAP-014	Bank records for the four 2025 tenders	Client's own bank — Phase 0	Yes
GAP-003	The NOE/RFI file and thirteen acknowledgments	Client's own file — Phase 0	Yes
GAP-001	Origination and disbursement file	Client file → discovery	Yes
GAP-020	Recorded Security Deed and Assignment	Public record — Phase 0	Yes
GAP-008	Mercer offer, rescission, adverse-action notice	Client → subpoena	Yes
GAP-007	Published foreclosure notices	Public record — Phase 0	Yes
GAP-019	The Note with endorsements and any allonge	Custodian	Yes
GAP-004	Credit reports and ACDV records	Client → discovery	Yes
GAP-010	Transaction-code key	30(b)(6)	No

Five of the eight blocking gaps need no discovery at all. Three are in the client's own files or their bank's; two are public records.

7. Which arguments appear strongest

RANK	ARGUMENT	SUPPORT	ASSESSMENT
1	RESPA payment-application error — the retained \$1,899.56	V-3, V-4: received 2025-05-17, never reversed, never applied, still the ending unapplied balance ten months later	Strongest in the matter. Defendant's own record; no innocent explanation on the ledger's face. Needs the NOE predicate (GAP-003)
2	FDCPA — Shellpoint as debt collector	V-10 party admission + V-9 boarding after its own default reckoning	Best-supported element in the matter. Narrow to post-2026-03-02 conduct (CA-03)
3	Fee challenge	V-2: \$8,408.74 itemised against V-1's frozen principal	Unusually well documented. Authority for the fees is a contract question (GAP-017)
4	Records-reliability / ownership inconsistency	C-1	Real, documentary, and no standing problem — because it does not challenge the assignment
5	Enforcing the 60-day notice obligation	V-14	The practical substitute for the injunction that was denied, and currently the most valuable thing Plaintiffs hold
6	Count IX — failure of consideration	V-18 + A-2	Strategically the most important count: it avoids the <i>Ames</i> bar entirely and targets the question the state court identified. But see I-5 — it is the count most exposed to a single document

8. Which arguments are weak, foreclosed, or dangerous

Foreclosed — decided in this case: remand on prior exclusive jurisdiction and on unanimity (Doc. 34 at 20, 23–25); Lendage as a defendant in the original complaint (Doc. 34 at 21); a preliminary injunction with no sale scheduled (Doc. 34 at 25).

Weak on the present record: Counts I–III (notice element, A-1); attempted wrongful foreclosure (publication **and** special damages both undocumented); FCRA (no report, no ACDV, and the CRA-notice element is the one most often fatal); GFBPA (ante litem notice not shown as pleaded — possibly incurable); the FDCPA count as to pre-2025 conduct.

Dangerous — do not advance:

ITEM	WHY
Any theory on the rejected-theory list (split-the-note; trust-agreement breach; defective assignment voids enforcement; no recorded assignment means no transfer)	Courts reject them and a single one makes the rest of the pleading read as weaker (CA-10)
SRC-007's "RED FLAG" annotations	The first one mischaracterises the opening-balance booking (CA-09)
The \$5,200.00 wire as a "verified" payment	C-5. The later pleading already drops it
Framing C-1 as a title defect	It would meet the standing bar head-on and lose, discarding a finding that works perfectly well as a records-reliability point

9. Which defects may be curable

DEFECT	CURABILITY	EFFORT	ACTION
¶ 29 reversal count (C-2)	by redraft	10 min	CA-02 — <i>strengthens</i> the allegation
¶ 31 defendant (C-3)	by redraft	5 min	CA-06
¶ 3 count miscite (C-4)	by redraft	5 min	CA-07
Count IX defendants (PD-04)	by redraft	10 min	HD-14
FDCPA limitations (PD-12)	by redraft	30 min	CA-03
RESPA notice element	with evidence	1 hour	CA-01
Special damages	with evidence	days	CA-05
Publication element	with evidence	days	CA-05
Count IX consideration	with evidence	days	CA-04
GFBPA ante litem	possibly incurable	check now	If notice was never given, the count goes

Nothing is identified as incurable except possibly the GFBPA ante litem requirement, and that at low confidence because Count XI was not read.

10. What should happen next

#	ACTION	OWNER	WHY NOW
1	Pull the full PACER docket. Establish whether an amended complaint was filed, when, and which version	Human	31 days past a deadline carrying a dismissal caution. Everything is contingent
2	Make the four redraft-only corrections (CA-02, CA-03, CA-06, CA-07)	Drafter	Under an hour; removes the three cheapest defense points; one <i>improves</i> our best allegation
3	Ask the client for the NOE/RFI file (CA-01)	Attorney	The single highest-value hour available. Counts I–III fail without it
4	Phase 0 retrievals: bank records; recorded Security Deed and Assignment; published notices; re-run the MERS lookup	Human (HD-19)	No discovery gate; closes five blocking gaps
5	Route to research: <i>Ames</i> ; § 1692k(d); the element formulations	Research	U-7, U-8, U-9 — three analyses rest on them
6	Obtain the origination and disbursement file (CA-04)	Attorney	Count IX and Judge Bagley's question
7	Subpoena Mercer Advisors and the screening vendor (CA-05)	Attorney	Largest damages figure; third parties are slow
8	Confirm the discovery gate before anything is served	Human (HD-20)	Nothing may be served until answered

11. Reconciliations performed

#	CONFLICT	LEVEL	RESOLUTION
R-1	Phase 1 analysed SRC-001; Phase 2 found SRC-020, a different and later pleading	1 — source-level	SRC-020 controls: later, structurally superior, and responsive to Doc. 35. Phase 1's pleading analysis is superseded , and its HD-2 is now answered in part. Neither is confirmed as filed, so both remain conditional on U-2
R-2	Phase 1: "no \$5,200 entry exists." Phase 2 with the 2023-12-19 date: the 12/21/23 cluster is a candidate	1 — source-level, refined	Both correct. No single entry exists; the cluster equals none of three defensible totals. Neither "absent" nor "applied" — unexplained , with all three computations shown
R-3	Phase 1 called the four 2025 payments ordinary web payments; SRC-021 ¶ 29 calls them TPP payments under a loss-mitigation plan	0 — not a conflict	The ledger shows the tenders; the pleading supplies the programme context. Materially strengthens the RESPA theory: payments under a servicer-offered trial plan, three reversed with \$0.00 NSF entries and one never applied
R-4	Evidence specialist: the \$855 rejection is Shellpoint's. Accounting specialist: both rows are PriorServicer , ten months pre-boarding	1 — source-level	Accounting controls. The ledger's own money-type marker is dispositive. The pleading misattributes it (C-3)
R-5	Ownership: the FREED/MEB inconsistency is material . Red team: pleading it as a title defect is a credibility risk	3 — significance-level	Both right, about different framings. Adopted: plead it as records-reliability, never as a chain-of-title attack. Recorded rather than resolved away
R-6	Pleading analyst rated the ¶ 29 error partial severity; red team rated the same item a credibility risk	4 — confidence/weight	Not a conflict in substance. Legal severity is partial; reputational cost is higher. Both retained; CA-02 addresses it either way

12. Limits of this memorandum

- **The record stops on 2026-07-31.** No source shows anything after Doc. 35.
- **No PACER.** The docket record obtained carries zero entries.
- **No citator.** Good-law status unconfirmed on every authority.
- **Element formulations are UNRESEARCHED** throughout the claim-survival matrix.

A wrong formulation would silently corrupt every row resting on it.

- **Six of sixteen counts were not analysed.** Counts X–XVI were read at heading

level only. The attack surface is incomplete by construction.

- **No primary ownership document was read** — no note, allonge, endorsement,

assignment instrument, trust agreement or loan schedule. The ownership result

carries `confidence: low` for that reason.

- **Two candidate pleadings exist and neither is confirmed as filed.**
- **Sources read only in part:** SRC-004, SRC-007, SRC-022.
- **Nothing has been filed, served, sent, or transmitted.** 22 human decisions are

logged, 14 blocking, `decided_by` blank on every one.